

FROM Robert Samuel White <rsw@rswfire.com>
TO "bryanna.duke@das.oregon.gov" <bryanna.duke@das.oregon.gov>
CC Governor Kotek * GOV <governor.kotek@oregon.gov>, [campaign address]
DATE July 7, 2026, 8:59 AM PT
SUBJECT **Public Records Request — Custodial-Basis Closures and Governing Policy**
DOCUMENT 01KWYMXG0RFHRAK0598B8T70VS

Dear Ms. Duke,

Under the Oregon Public Records Law (ORS 192.311 to 192.478), I request the following records from the Oregon Department of Administrative Services for the period January 1, 2022 to the present:

1. The number of public records requests the Department has closed, denied, or otherwise disposed of on the basis that DAS is not the custodian of the requested records (including dispositions referring the requester to another agency as custodian), broken down by year.
2. Any written policy, procedure, guidance, standard, or training material governing how and when the Department determines that it is not the custodian of requested records, and how such a determination is distinguished from a "no responsive records" determination.
3. Any record reflecting the standard applied in making custodial-basis dispositions — for example, checklists, decision templates, internal instructions, or correspondence establishing the criteria used.

If the Department maintains a log, tracking system, or database of public records requests and their dispositions (such as the GovQA/public records portal), the responsive count in item 1 may be produced as an export or report from that system.

If no responsive records exist for any item — for instance, if the Department does not track dispositions by basis, or maintains no written policy governing custodial-basis closures — I ask that the Department state so expressly for that item.

I'm requesting this in the public interest, as a matter of governmental transparency and accountability in the administration of Oregon's public records law, and I ask that any fees be waived or reduced on that basis under ORS 192.324(5). I'd prefer to conduct this correspondence by email; please feel free to reply to this address.

Finally, please treat this as formal notice of a duty to preserve. All records potentially responsive to this

request — including request logs, disposition data, portal exports, policies, guidance, and related internal communications — must be retained and protected from deletion, alteration, or destruction.

Given my pending notice of claim under 42 U.S.C. § 1983 and the reasonable anticipation of litigation, the Department is on notice that any destruction, alteration, or failure to preserve potentially responsive records following receipt of this notice may constitute spoliation of evidence and may give rise to legal consequences, including sanctions and adverse-inference findings.

Thank you,

Robert Samuel White

Founder, Autonomy Realms

Owner, eNetwizard Inc.

Former Oregon State Parks Volunteer

Current U.S. Forest Service Caretaker

Steward, oprdvolunteerabuse.org